



There is a clamour among human rights activists for prosecuting Modi following this fresh evidence, but the legal procedure is complicated and time-consuming.

Significantly, the apex court had ordered re-examination of 2,000 of the 4,250 riots cases of 2002 following Setalvad's intervention in 2004. There is a clamour among human rights activists for prosecuting Modi following the exposé. But as Nirupam Nanavati, Gujarat's leading criminal lawyer and Congress leader says, "The statement of a co-accused is not admissible as evidence under the Indian Evidence Act. Modi's prosecution is possible only after Section 10 of the Act is pressed by the investigation agency to facilitate a fresh probe, which can lead to his implication based on evidence that might surface. However, there is no doubt that earlier there was a finger of suspicion against him but now it aims at him in perception."

The judicial cases against the 5,000-odd accused still facing charges in the 2002 Gujarat riots cases are expected to get stronger thanks to the *Tehelka* sting. But the impact of the exposé has been diluted to some extent by inaccuracies in the statements of those interviewed during the sting. Two of the 14 caught speaking on camera say that one day after the Naroda Patiya massacre in Ahmedabad on February 28 (in which 89 Muslims

RUDE REMINDER: The sting returns to haunt Modi and the perpetrators of the violence

were killed by a Hindu mob) Modi came to Naroda Patiya to thank them. But the statements of Babu Bajrangji and Suresh Richard, key accused in the case, seem to be boastful lies as the official records show Modi didn't go to Naroda Patiya on that day.

Similarly, a VHP activist, Ramesh Dave, told the *Tehelka* reporter Ashish Khaitan on camera that one of the divisional superintendents of police, S.K. Gadhvi, promised him that he would kill five Muslims during the riots and carried out his promise by killing five Muslims in the Dariapur area. Official records show that Gadhvi was posted in Dariapur area of Ahmedabad one month after the riots and no such incident took place during his tenure. Despite this, the operation has proved a windfall for the human rights lobby with the chilling and gory descriptions of rape, murder and mass slaughter. More chilling is that these people are still walking free, although they have gone underground after the sting. INDIA TODAY looks at their involvement in the riots, their macabre claims and the status of the cases against them.